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| CASE #      | CASE NAME          | HEARING NAME                                    |
|-------------|--------------------|-------------------------------------------------|
| CVRI2402667 | AGUIRRE VS ARTEAGA | MOTION FOR SUMMARY<br>ADJUDICATION ON COMPLAINT |

**Tentative Ruling:** The Court **GRANTS** Defendant/Plaintiff, Jaime Francisco Arteaga, Jr.'s Request for Judicial Notice. The Court **GRANTS** summary adjudication of Arteaga's partition action, and the 9th cause of action for partition in Aguirre's FAC, in favor of Arteaga and against Aguirre.

**FACTUAL / PROCEDURAL CONTEXT:**

Plaintiff, Cynthia Aguirre, alleges that in February of 2000, her parents purchased real property located at 4868 Martin Street in Jurupa Valley, which Plaintiff moved into with three of her children. On 1/1/21, Plaintiff's mother passed away, and shortly thereafter, her father (Frank Aguirre) became severely ill and needed constant care. Plaintiff took over his care and ensured his ownership-related expenses and maintenance of the property were taken care of. She alleges he told Plaintiff he wanted to add her to the title in the event he passed away. In February of 2021, Plaintiff's son, Defendant, Jaime Francisco Arteaga, Jr. (Arteaga) approached her and her father (Arteaga's grandfather) offering to help with property expenses in exchange for being added to title, which Plaintiff accepted. She and Arteaga verbally agreed to split the expenses after her father/his grandfather passed including mortgage payments, property taxes, and utilities. On 3/5/21, Frank Aguirre, executed a grant deed dividing the ownership interest between himself, Plaintiff and Defendant. In September of 2022, Frank Aguirre passed away.

Promptly thereafter, Arteaga, without Plaintiff's notification, moved a large RV into the backyard to live in as his permanent residence. To make room for the RV, Arteaga removed trees, re-parked vehicles into the middle of the yard, sold one vehicle without Plaintiff's authorization, and removed/disposed of several of Plaintiff's custom bird cages along with other personal property. Then, Arteaga dismantled part of the original fence to install a new chain link fence that divided the property in two and obstructed the property's driveway. Plaintiff complains that Arteaga regularly leaves the gate unlocked allowing Plaintiff's dog and other pets to escape; Plaintiff asserts she has lost up to eight dogs. Plaintiff alleges she and her children have effectively been ejected from the backyard. This has caused Plaintiff and Arteaga's relationship to deteriorate. Arteaga has threatened to get Plaintiff off the property.

Plaintiff alleges that Arteaga has not complied with his agreement to split the expenses, has been intercepting the mail, and concealing bills to force the property into foreclosure so he could buy it for less money. Plaintiff has paid nearly all the bills since September of 2022. There is a restraining order in place ordering the two to stay a hundred yards apart. Plaintiff alleges Arteaga made misrepresentations as part of a scheme to take the property from her. Plaintiff filed her operative First Amended Complaint (FAC) on 5/15/24 alleging ten causes of action: 1) breach of oral contract; 2)

quiet title; 3) accounting; 4) unjust enrichment; 5) constructive trust; 6) promissory fraud; 7) private nuisance; 8) ejectment; 9) partition; and 10) declaratory relief.

The above action has been consolidated with Arteaga's action (CVRI 2402788) filed on 5/21/24, which seeks partition of the subject property by buying out Cynthia Aguirre's interest.

Defendant/Plaintiff, Arteaga, brings this motion for summary adjudication of the 9th cause of action in Aguirre's FAC, and the single cause of action for partition in Arteaga's Complaint. Arteaga asserts four issues: that statutory partition applies; that fair market value (FMV) can be based on the parties' stipulated appraisal; that Aguirre irrevocably elected partition by sale; and, that Arteaga's election to buy out is superior to Aguirre's election for sale - that because Aguirre requested partition by sale, and he did not, he is the sole cotenant eligible to exercise the statutory buyout election so, there are no triable issues of material fact. The property has been appraised at \$542,000 (as of February of 2025).

Plaintiff/Defendant, Aguirre, opposes the motion for summary adjudication arguing that there is a genuine issue of material fact as to the FMV of the subject property; that Arteaga has not established that, as a matter of law, he is entitled to buy out Plaintiff's interest in the property; that there are genuine issues of material fact as to the remaining causes of action that must be resolved prior to the partition cause of action; and, that the property is currently valued at \$616,195 on Redfin.com.

The Reply asserts the Opposition is untimely, should be stricken, and the Court should grant the unopposed motion; that even if the Court considers the late-filed Opposition, Plaintiff failed to raise a triable issue of material fact – the attempt to create a dispute over FMV using Redfin is legally insufficient and objectionable.

## **ANALYSIS**

### **I. Request for Judicial Notice**

Plaintiff/Defendant, Arteaga, asks the court to take judicial notice of: 1) a Grant Deed recorded on 4/22/21 by Frank Aguirre to himself, Cynthia Alice Aguirre, and Jaime Junior Arteaga, as joint tenants (Ex. "1" – attached to the Compendium of Exhibits [COE]); 2) an Affidavit-Death of Joint Tenant recorded on 5/17/24 by Arteaga (COE, Ex. "3"); 3) Declaration Severing Joint Tenancy recorded on 5/17/24 by Arteaga (COE, Ex. "4"); 4) Cynthia Aguirre's FAC filed on 10/4/24 (COE, Ex. "5"); and 5) Arteaga's Complaint filed on 5/21/24 (COE, Ex. "6".)

Generally, a court may take judicial notice of a recorded document, the date it was recorded and executed, the parties to the transaction and the legally operative language as long as there is no genuine dispute regarding the document's authenticity. (*Scott v. JP Morgan Chase Bank* (2013) 214 Cal. App. 4th 743, 755.) There is no opposition to Arteaga's Request for Judicial Notice (RJN) of the recorded documents. (see COE, Exs. "1", "3", and "4".) Thus, the Court can take judicial notice of these three recorded documents.

In addition, the court can take judicial notice of the records in the pending action, or in any other action pending in the same court or any other court of record in the U.S. (Evid. Code §452(d).) But judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in other court files, as distinguished from the contents of documents filed therein. (*Fremont, supra.*; *Arce v. Kaiser Found. Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 482-484.) The Court can take judicial notice of the existence of the complaints, but not the truth of their contents. Thus, the Court GRANTS the Request for Judicial Notice.

## **II. Standard on MSA**

Summary judgment is granted when a moving party establishes the right to entry of judgment as a matter of law. (CCP § 437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (CCP § 437c(p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Defendant, as the moving party, has the burden to show either that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. (CCP §437c(p)(2).) Defendant can meet their burden by showing either: (1) affirmative evidence that shows an element of the claim cannot be established; or (2) showing an absence of evidence on a critical element of Plaintiff's claim.

Once the moving party has made such a showing, the burden shifts to the responding party to show that a triable issue of one or more material facts exists as to that cause of action or as to a defense to the cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) If the responding party does not make such a showing, summary judgment in favor of the moving party is appropriate.

"The purpose of the summary judgment procedure is not to try the issues but merely to discover ... whether the parties possess evidence which demands the analysis of trial." (*Colvin v. City of Gardena* (1992) 11 Cal.App.4th 1270, 1275 (italics added).) Summary judgment can be granted only where the essential facts are either conceded or beyond dispute. If there is one, single material fact in dispute, the motion must be denied.

The court also has the power to summarily adjudicate that one or more causes of action have no merit, that there is no merit to one or more affirmative defenses, or that a defendant owed or did not owe a duty to plaintiff. A motion for summary adjudication shall only be granted if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (CCP §437c(f)(1).)

## **III. Partition**

A co-owner of real or personal property may bring an action for partition to sever the unity of possession." (*Schwartz v. Shapiro* (1964) 229 Cal.App.2d 238, 257; *LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) Partition changes the rights of

cotenants from common possession of the entire property into individual rights of exclusive possession of some portion of the property or to sale proceeds of the property for each co-tenant. (Dabney v. Dabney (2002) 104 Cal.App.4th 379.)

Partition is an equitable remedy that is governed by statute. (Cummings v. Dessel (2017) 13 Cal.App.5th 589, 596-597.) In an action for partition, the court determines the interests of the parties, and whether the plaintiff has the right to partition. (CCP §§ 872.610, 872.710.) “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition.” (CCP § 872.720(a).) If demanded, a co-owner is entitled to partition as an absolute right. (Williams v. Williams (1967) 255 Cal. App. 2d 648, 651.)

There are three methods of partition: (1) physical division in kind of the property (CCP § 872.810); (2) sale of the property (CCP § 872.820); and (3) division by appraisal. In lieu of dividing the property among the parties, the court shall order the property be sold and the proceeds divided among the parties in accordance with their interests in the property if the parties agree to such relief or the court determines sale and division of the proceeds would be more equitable than a division of the property. (CCP § 872.820.)

In this motion, Arteaga seeks summary adjudication of four issues: 1) partition applies to the subject property (CCP § 874.311, et. seq.; 2) the parties are entitled to an adjudication of the fair market value (FMV) (CCP § 874.316); 3) Aguirre irrevocably elected partition by sale in her FAC triggering CCP § 874.217(a)'s exclusion of the selling cotenant from the class of eligible purchasing cotenants; and, 4) Arteaga seeks partition by buyout, and is entitled to purchase Aguirre's interest (CCP § 874.317.)

Arteaga asserts that as a co-owner of the subject property, he has an absolute right to partition unless 1) he is statutorily ineligible (CCP § 874.317(a)) or 2) he is barred by a valid waiver (CCP § 872.710(b)). The Partition of Real Property Act (Act) “applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property. (CCP § 874.311(a), (b).) The Act applies to partition action filed on or after 1/1/23. (CCP § 874.311(c).) The Court determines the FMV of the property by ordering an appraisal unless all cotenants have agreed to the value or to another method of valuation or the court determines the evidentiary value of the appraisal is outweighed by the costs of the appraisal. (CCP § 874.316.)

CCP § 874.317(a) provides that “[i]f any cotenant requested partition by sale, the court shall, after the determination of value under section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale.” Within 45 days of sending such notice, “any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale.” Based on this authority, Arteaga argues that partition must be ordered and he must be allowed to buy out Aguirre's interest in the property.

It is undisputed that Arteaga is Plaintiff's, Cynthia Aguirre's, son and that she is the daughter of Frank Aguirre (deceased). (Undisputed Material Fact [UMF] No. 1.) Frank Aguirre had transferred title to the property to himself, Cynthia Aguirre, and Arteaga, as joint tenants. (UMF No. 2.) Frank Aguirre passed away on 9/9/22, which left Cynthia Aguirre and Arteaga as surviving joint tenants. (UMF Nos. 4-5.) On 5/17/224, Arteaga recorded a declaration to sever the joint tenancy leaving him and Aguirre, as tenants in common, each with a 50% interest. (UMF No. 6.)

On 5/15/24, Aguirre's original verified Complaint was filed, which included a cause of action for partition by sale, which was included in her FAC. (UMF No. 10.) On 5/21/24, Arteaga filed his Complaint, which contained a cause of action for partition. (UMF No. 12.)

In January of 2025, the parties stipulated to an appraiser (C. D. McCullough) to obtain the FMV of the property. (UMF No. 8.) On 2/24/25, Mr. McCullough visited the property and prepared a certified appraisal of the property finding the FMV to be \$542,000. (UMF No. 9.)

Based on these facts, Arteaga argues that both parties seek partition, but Aguirre has waived her right to purchase Arteaga's interest in the property by requesting partition by sale. (CCP § 874.317(a).) To the contrary, Aguirre asserts that Arteaga is not entitled to buy out Aguirre's interest because he filed a competing Complaint for partition, and has not established that he has reserved a right to buy out Aguirre when he is also a cotenant requesting partition. (Aguirre's Separate Statement [Aguirre's SS], Issue No. 2, Additional Material Facts [AMF], No. 1.) Aguirre also asserts that her partition cause of action is alleged as an alternative to her other causes of action. (Aguirre's SS, UMF No. 10; Issue No. 3, AMF No. 1.) Therefore, she concludes there are triable issues of material fact as to the ownership interests in the property.

In addition, Aguirre argues there is a genuine issue of material fact as to the FMV of the property because Arteaga is relying on an appraisal that is more than a year old and the property's value has increased since the time the appraisal occurred (February of 2025.) (Aguirre's SS, Issue No. 1, AMF Nos. 1-2.) She asserts the FMV is \$616,195 as indicated on Redfin.com. (Aguirre's SS, Issue No. 1, AMF, Nos. 1-2.) Without citing any authority, Aguirre concludes that the Court "needs to try the issue of" FMV based on the current conditions of the property.

Further, Aguirre argues that Arteaga is not entitled to partition when the parties' interests have not been determined and Aguirre's equitable claims related to ownership and title are still pending (e.g., Aguirre claims 100% title in her quiet title cause of action.) She asserts those claims must be determined before a judgment for partition can be entered.

In response to Aguirre's arguments in the Opposition, Arteaga argues that Aguirre's attempt to create a dispute over FMV fails because "using inadmissible internet estimates (Redfin) is legally insufficient." (Reply. P. 2:8-9.) Specifically, Arteaga asserts the Redfin.com estimate lacks foundation, constitutes hearsay, lacks authentication, and constitutes improper expert opinion without a reasoned explanation

of methodology. As such, Arteaga argues this “evidence” should be ignored. Although Arteaga did not assert properly formatted formal objections (Cal. Rules of Court, Rule 3.1350(c)), the only admissible evidence is the stipulated appraisal.

In addition, Arteaga disputes a critical additional material fact on the ground that Arteaga’s Complaint explicitly alleges he “is electing to buy out all interests of the other cotenants of the Property.” (Arteaga’s Reply Separate Statement [RSS], Issue No. 2, AMF No. 1.)

Moreover, Arteaga asserts that Aguirre has admitted certain facts according to the Court’s 5/29/26 order deeming matters admitted as against Aguirre. Specifically, Request for Admission (RFA) No. 5 states “ARTEAGA’s interest in the MARTIN STREET is as a tenant in common with a 50% interest in said real property.” (Reply, p. 4:26-28.) RFA No. 6 states “YOUR [Aguirre] interest in Martin Street is as a tenant in common with a 50% interest in said real property.” (Reply, p. 5:1-2.) RFA No. 7 states “YOU [Aguirre] are not entitled to credits, claims, offsets or reimbursements against ARTEAGA’s 50% ownership interest in MARTIN STREET.” (Reply, p. 5:3-4.) RFA No. 8 states “ARTEAGA has a statutory right to partition his interest in MARTIN STREET from YOUR claimed interest in MARTIN STREET, pursuant to CCP § 874.311.” (Reply, p. 5:5-6.) Notably, Aguirre failed to oppose the motion to deem RFAs admitted. Instead, her attorney filed a declaration asserting a break down in the attorney-client relationship.

Based on the foregoing, Arteaga has established that his Complaint states he elected to buy out his co-tenant’s interest in the subject property, which barred Aguirre from buying out Arteaga’s interest. (CCP § 874.317(a).) Arteaga also established that he and Aguirre each own a 50% interest in the title to the subject property based on the 2021 grant deed from Frank Aguirre (deceased.) Aguirre has not established otherwise, nor has she raised any triable issue of material fact as to the partition cause of action. Thus, the Court GRANTS summary adjudication of that claim.

### 3.

| CASE #      | CASE NAME                      | HEARING NAME                                 |
|-------------|--------------------------------|----------------------------------------------|
| CVRI2501689 | VELUPPILLAI VS CHAVEZ-GONZALEZ | MOTION TO STRIKE DEFENDANT’S CROSS-COMPLAINT |

**Tentative Ruling:** The Court DENIES Plaintiff’s Motion to Strike.

Plaintiff’s moving papers cite CCP §436(a), which provides the court the ability to strike portions of a complaint. C.C.P. §436(a) provides that a court may “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (emphasis added.) CCP §436(a) does not, as Plaintiff seeks, give the court the ability to strike the entire CC. Although not cited, to the extent that Plaintiff intended to move pursuant to CCP §436(b) his arguments still lack merit. CCP §436(b) provides that a court may “[s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”